



Appeal Decision

Site visit made on 24 August 2026

by R Gravett BA(Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15 September 2026

Appeal Ref: 6011231

Caravan, Gravel Farm, 250 Gravel Lane, Banks PR9 8BY

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) ('the Act') against a refusal to grant planning permission.
 - The appeal is made by Mr Ashley Warren against the decision of West Lancashire Borough Council.
 - The application Ref is 2026/0042/FUL.
 - The development proposed is change of use of 'Barn A' to dwelling and 'Barn B' to ancillary garage.
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Decision

1. The appeal is allowed and planning permission is granted for change of use of 'Barn A' to dwelling and 'Barn B' to ancillary garage at Caravan, Gravel Farm, 250 Gravel Lane, Banks PR9 8BY in accordance with the terms of the application, Ref 2026/0042/FUL, and the plans submitted with it, subject to the conditions in the attached schedule.

Application for costs

2. An application for costs was made by Mr Ashley Warren against West Lancashire Borough Council. This is the subject of a separate decision.

Preliminary Matters

3. The address in the banner heading and decision above has been taken from the Council's decision notice as it is more accurate than the one provided on the application form and is consistent with the Existing Location Plan.
4. A new National Planning Policy Framework ("the Framework") was published in August 2026. The Framework is a material consideration of critical importance which should be taken into account from the day of publication. The main parties have had the opportunity to comment on any implications for the appeal, and I have taken comments received into account.

Main Issue

5. The main issue is whether the proposed development would be in a suitable location for housing having regards to its access to local services, facilities and public transport, and to the Council's spatial strategy.

Reasons

6. The appeal site is located within the Green Belt. However, the Council concluded that the proposal would fall within an exception to inappropriate development at paragraph 154 of the 2024 version of the Framework. Based on the evidence

before me, I have no reason to reach a different conclusion on this matter. Therefore, the proposal would not be inappropriate development in the Green Belt.

7. Policy HO11(1) of the Framework states that proposals for isolated homes in the countryside should only be supported where certain circumstances apply. Whether a proposed new dwelling is “isolated” is a matter of planning judgement based on the circumstances of the case in hand, but policy S5(3) of the Framework refers to isolated homes as ‘lying outside settlements or groups of houses.’
8. It is not in dispute between the parties that the appeal site is not within any of the settlements identified in the hierarchy in Policy SP1, and shown on the Policies Map, of the West Lancashire Local Plan 2012-2027 DPD (2013) (LP). LP Policy SP1 seeks to ensure new development is sustainable in its location and accessibility, amongst other provisions. However, the proposal is for the change of use of two former agricultural buildings which are located behind 250 Gravel Lane, a dwelling, and the new dwelling would form part of a small group of existing dwellings on the southern side of this part of Gravel Lane.
9. The appeal site is only just over 1km from the edge of the nearest settlement of Banks, which is on the opposite side of Southport New Road (A565), and is identified in the LP as a ‘Key Sustainable Village.’ The walking route to and from Banks is slightly circuitous at the roundabout junction between the A565 and Gravel Lane, but the pavement is nonetheless continuous, mainly flat, and it passes a ribbon of dwellings and a holiday park on one side of Gravel Lane. The proposed new dwelling would not therefore be remote from the nearest settlement.
10. For these reasons, in my judgement, the proposal would not be an isolated home, and it does not fall to be considered against Framework policies S5(3) and HO11.
11. The closest bus stop to the appeal site is located a short walk away, close to the holiday park entrance on Gravel Lane. From here, there is a bus service between Chorley and Southport, which runs every two hours Monday to Saturday and the route maps¹ show opportunities for onward rail connections in Southport, Rufford and Chorley. Although further away, there is also a bus stop on Guinea Hall Lane on the outskirts of Bank which has a more frequent (typically half hourly) service Monday to Saturday, between Liverpool City Centre, Southport and Preston, and an hourly service on a Sunday.
12. The distance and narrow pavements may discourage some future occupiers of the dwelling from walking to the bus stop on Guinea Hall Lane, and this would particularly be the case for families with young children, older people or those with mobility issues. However, although the surface quality varies, the pavements are well-lit and wide enough to ensure safe and comfortable movement for most pedestrians to both bus stops, during both the daytime and evening hours. I do not therefore find the topography, route or any physical barriers to be present which would prevent or discourage most future occupiers of the proposed dwelling from using available public transport, as a genuine alternative to the private car.
13. The nearest facility to the appeal site is a petrol station kiosk which is within reasonable walking or cycling distance. However, this sells a limited range of goods and would not meet more than a basic or ‘top up’ shop, and it is unlikely to meet the day-to-day needs of future occupiers of the dwelling. There is a primary

¹ Appeal Statement of Case - Appendix 2

school, medical centre, pharmacy and convenience store in Banks, but whilst regular journeys to these services and facilities would not be lengthy, they would most likely be undertaken by car given the distance.

14. Overall, whilst I accept the location of the appeal site would allow trips to be made by bus and bicycle, the distance to the nearest services and facilities in Banks would mean that future occupiers of the proposed dwelling would be largely reliant on the private car to meet their day-to-day needs. Consequently, although I conclude that the proposal would not be an isolated home, it would not be a suitable location having regards to its limited access to local services and facilities.
15. It would conflict with LP policies SP1 and GN3 where, amongst other things, they seek to ensure that new development is sustainable in its location. In so far as it conflicts with these policies, it would also conflict with the spatial strategy at LP Policy GN1 which requires development proposals in the Green Belt to be assessed against national policy and any relevant LP policies.
16. LP Policy RS1 seeks to limit the scale and type of housing development outside settlement boundaries, but as it does not refer to the reuse of existing buildings or isolated homes, I do not find it to be determinative to this main issue.

Planning Obligation

17. The appeal is supported by a planning obligation in the form of a signed unilateral undertaking, dated 12 June 2026, made pursuant to section 106 of the Act ("the Planning Obligation"). Consideration of planning obligations is to be undertaken having regard to policy DM6(4) of the Framework and the statutory requirements contained in Regulation 122 and 123 of the Community Infrastructure Levy (CIL) Regulations 2010 ("the Regulations").
18. Under the statutory framework for biodiversity net gain, subject to some exceptions, every grant of planning permission is deemed to have been granted subject to the condition that a 10% biodiversity gain objective is met. The Planning Obligation provides that the dwelling will be constructed and occupied as a self-build house as defined in section 1(A1) of the Self-build and Custom Housebuilding Act 2015 (as amended), which is one of the exceptions to this statutory requirement. Accordingly, I am satisfied that the Planning Obligation meets the tests set out in the Framework and the requirements of the Regulations.

Other Matters

19. Matters of whether there has been any unlawful disturbance of bats or Barn Owls falls outside the scope of my consideration of the appeal, but I deal with the protection of potential Barn Owl nests further below.

Conditions

20. The Council has provided a list of conditions, which I have reviewed in line with policy DM6(1) of the Framework and guidance in the Planning Practice Guidance. I have also had regard to the conditions suggested by consultees, and where appropriate the wording of these has been amended for simplicity and clarity.
21. Conditions specifying the approved plans and a timescale for the commencement of the development are necessary in the interests of certainty.

22. Given the proximity of the neighbouring dwelling, a condition requiring a Construction Management or Method Statement is reasonable in the interests of maintaining amenity and highway safety during the building works.
23. I note that the existing barns have a concrete floor slab, but in the absence of construction details, and given the historic agricultural use of the appeal site, a condition is required to ensure that contamination is appropriately addressed to minimise risks for future occupiers. This is a pre-commencement condition so that appropriate investigation is carried out at a very early stage of development.
24. To minimise the risks of flooding, I have imposed conditions which secure flood mitigation measures. This is a pre-commencement condition because a satisfactory solution could be prejudiced if left to a later stage in the development process. For the same reason, I have imposed a condition requiring the development to be carried out and maintained strictly in accordance with the drainage details approved.
25. In the interests of highway safety, conditions requiring extension/installation of the dropped kerb and vehicle cross-over, visibility splays to remain unobstructed, and parking and turning areas to be laid out prior to occupation, and thereafter retained as such, are necessary and reasonable.
26. Lighting specification details were submitted with the planning application, but the location and number of proposed luminaires is not shown on the plans. A condition requiring the submission and approval of external lighting is therefore necessary in the interests of minimising light pollution, protecting living conditions of neighbours and safeguarding local biodiversity.
27. In the interests of nature conservation, a condition requiring the installation of bird boxes is necessary. As the nests of wild birds are protected under the Wildlife and Countryside Act 1981, a condition restricting the timing of construction works is not necessary. However, to mitigate the loss of a potential nest site for Barn Owls I have imposed a condition which requires a detailed 'Barn Owl Mitigation Plan' to be submitted and approved.

Planning Balance and Conclusion

28. Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires that applications for planning permission must be determined in accordance with the development plan unless material considerations indicate otherwise.
29. The Framework is a material consideration of critical importance. Policy S5 of the Framework does not apply to development proposals in the Green Belt. However, in locations outside settlements, where development would not be inappropriate in the Green Belt, it states that proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, assessed against the national decision-making policies and applying policy S5(2).
30. The only adverse effect or harm I have identified relates to the suitability of the location for housing given its limited access to local services and facilities. This harm attracts weight against the proposal and results in conflict with the Council's spatial strategy and LP Policies SP1, GN1 and GN3.
31. I have no evidence before me that the development proposal would fail to comply with one of the national decision-making policies which state that development

proposals should be refused in specific circumstances (policy S5(2)). Nor do I find conflict with Policy TR3 of the Framework in so far as it requires that, in rural areas, opportunities to improve walking, wheeling, cycling and public transport and enhance the connectivity of an area should be taken where they exist.

32. Policy HO7 of the Framework gives substantial weight to the benefits of providing homes and whilst I have little evidence that the proposal would meet a need for self-build homes in the community, it would nonetheless contribute to housing supply in the area. Further, the change of use of the former agricultural barns to a new dwelling would make better use of vacant and underutilised land and buildings, a benefit to which Policy L2(1) of the Framework requires substantial weight be given. On balance, I conclude that these benefits would not be substantially outweighed by the adverse effect identified above.
33. For the reasons given, the proposed development would conflict with the development plan but material considerations, including the Framework, indicate that a decision should be made other than in accordance with it. I therefore conclude that the appeal should be allowed.

R Gravett

INSPECTOR

Schedule of Conditions

- 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following approved plans:

1217_200 Existing Location Plan
1217_202 Proposed Site Plan
1217_203 Proposed Boundary Treatments
1217_206 Barn A – Proposed GA Plans & Elevations
1217_208 Barn B – Proposed GA Plans & Elevations
1217_212 Proposed Site Sections
- 3) No development shall take place, including any works of demolition or site clearance, until a Construction Management Plan (CMP) or Construction Method Statement (CMS) has been submitted to, and approved in writing by the Local Planning Authority. The approved CMP or CMS shall be adhered to throughout the duration of the development.
- 4) No development shall take place until an assessment of the risks posed by any contamination, carried out in accordance with British Standard BS 10175: Investigation of potentially contaminated sites - Code of Practice and the Environment Agency, Land Contamination Risk Management (LCRM) (or equivalent British Standard and Model Procedures if replaced), has been submitted to and approved in writing by the Local Planning Authority. If any contamination is found, no development shall take place until:
 - i. a report specifying the measures to be taken, including the timescale, to remediate the site to render it suitable for the development hereby permitted has been submitted to and approved in writing by the Local Planning Authority;
 - ii. the site has been remediated in accordance with the approved measures and timescale; and
 - iii. a verification report has been submitted to and approved in writing by the Local Planning Authority.

If, during the course of development, any contamination is found which has not been previously identified, work shall be suspended until:

 - i. additional measures for the remediation of the site have been carried out in accordance with details that shall first have been submitted to and approved in writing by the Local Planning Authority; and
 - ii. a verification report for all the remediation works has been submitted to and approved in writing by the Local Planning Authority.
- 5) No development shall take place until a detailed design of the flood mitigation measures as identified in the Flood Risk Assessment (FRA) by Townsend Water Limited (referenced: FD235, Version 1, dated 27 October 2025) including a flood warning scheme and evacuation plan, has been submitted to and approved in writing by the Local Planning Authority.

- 6) No development shall take place until a detailed Barn Owl Mitigation Plan, in line with 8.0 of the submitted Ecological Appraisal carried out by Simply Ecology Limited, September 2025 (Ref. AWQ004/03) has been submitted to and approved in writing by the Local Planning Authority. The Mitigation Plan shall give details of the type, location, management and maintenance of the pre- and post-works nesting boxes/lofts and the timings of installation. The development shall be carried out in accordance with the plan and post-works nesting boxes/lofts retained thereafter.
- 7) Prior to first occupation of the dwelling hereby permitted, a dropped kerb shall be extended and installed at the carriageway edge and a vehicle cross-over constructed across the footway (and/or verge) fronting the site in accordance with the Lancashire County Council Specification for Construction of Estate Roads. The dropped kerb and vehicle cross-over shall thereafter be retained as such.
- 8) Prior to first occupation of the dwelling hereby permitted, the parking and turning areas shown on 1217_202 Proposed Site Plan shall be surfaced or paved in accordance with a scheme to be submitted to, and approved in writing, by the Local Planning Authority. The areas shall thereafter be always kept free of obstruction and available for the parking and/or turning of vehicles.
- 9) Prior to first occupation of the dwelling hereby permitted, details of the number, type, location and timing of the installation of other bird nesting boxes to be incorporated into the scheme have been submitted to, and approved in writing, by the Local Planning Authority. The bird boxes shall be installed in accordance with the agreed timing and shall be retained thereafter.
- 10) The development hereby approved shall be carried out and maintained for the lifetime of the development as per the following documents and plans:

Flood Risk Assessment (FRA) by Townsend Water Limited (referenced: FD235, Version 1, dated 27 October 2025)
Drainage Strategy Report by Gadsden Consulting (referenced: 25446, dated 21 November 1015)
Drainage Layout by Gadsden Consulting (drawing no. 25446-GAD-00-00-DR-C 1000-P01)
Drainage Details by Gadsden Consulting (drawing no. 25446-GAD-00-00-DR-C 1070-P01)
- 11) Nothing shall be erected, retained, planted and/or allowed to grow at or above a height of 0.9 metres above the nearside carriageway level which would obstruct the visibility splay shown on 25MAY002/15/003 - Site Access Strategy. The visibility splay shall be always maintained free of obstruction for the lifetime of the development.
- 12) Prior to installation, details of any external lighting shall be submitted to and approved in writing by the Local Planning Authority. The lighting shall then be installed in accordance with the approved details and retained as such thereafter.

End of Schedule